

WEEKLY BUSINESS SESSION – July 15, 2026

9:00 a.m. – Anne Basker Auditorium

600 N.W. Sixth Street, Grants Pass, OR 97526

Present: Ron A. Smith, Chair-Commissioner; Colene M. Martin, Vice-Chair-Commissioner (excused) and Gary L. Richardson, Commissioner, Nikole Guzman, Recorder

These are meeting minutes only. Only text enclosed in quotation marks reports a speaker's exact words.

Pursuant to notice through the media and in conformance with the Public Meeting Law, Ron Smith, Chair, called the meeting to order at 9:00 a.m. followed by the Pledge of Allegiance.

Items discussed were as follows:

1. **CALL MEETING TO ORDER:** Pursuant to notice through the media and in conformance with the Public Meeting Law, Ron Smith, Chair, called the meeting to order at 9:00 a.m.
2. **DECLARE A POTENTIAL CONFLICT OF INTEREST:** The commissioners reserved their right to declare a potential conflict of interest.
3. **REQUESTS/COMMENTS FROM CITIZENS:** *(Each person will be given three (3) minutes to speak)*
Stephen Fitch, Josephine County resident, addressed the Board regarding concerns he has previously raised involving alleged retaliation, constitutional rights, and legal proceedings involving local governmental entities. Mr. Fitch stated that he believes his constitutional rights have been violated and advised that, absent resolution of those concerns, he intends to pursue the matter in federal court.
BOARD MAY REVIEW PUBLIC COMMENTS/QUESTIONS:
4. **APPROVAL OF CONSENT CALENDAR:**
 - a. **Minutes** *(Draft minutes are available for viewing in the Board's Office)*
Executive Session – July 6, 2026
Admin Workshop – July 7, 2026
Weekly Business Session – July 8, 2026
Executive Session – July 8, 2026
Board Journal – June 2026
Commissioner Richardson made a motion to approve the Consent Calendar, seconded by Commissioner Smith. Upon roll call, Commissioner Richardson – yes, Commissioner Martin – excused, Commissioner Smith – yes. Motion carried 2-0.
5. **OTHER: (ORS 192.640(1))** *“ . . . notice shall include a list of the principal subjects anticipated to be considered at the meeting, but this requirement shall not limit the ability of a governing body to consider additional subjects.”*
6. **ANNOUNCEMENTS: MATTERS FROM COMMISSIONERS:**
Commissioner Richardson presented public safety information regarding heat-related illness and exposure to wildfire smoke. He advised that informational resources regarding heat stroke, heat illness prevention, and wildfire smoke would be linked with the meeting minutes on the County website. Commissioner Richardson also highlighted the Watch Duty mobile application as a resource for receiving current wildfire information, including fire locations, evacuation zones, and changes in evacuation levels throughout Josephine and Jackson Counties. Chair Smith stated that he also used the Watch Duty application and had followed the rapid growth of the East Evans Creek Fire from a small initial report to more than 5,000 acres. He urged residents and visitors to exercise extreme caution with fire while recreating or working in forested areas. Chair Smith commended firefighters for responding quickly under difficult terrain and vegetation conditions. He also discussed the effects repeated wildfire seasons and smoke have had on residents and emphasized the need for improved forest management and additional work in the forests to reduce fire hazards.

Weekly Business Session adjourned at 9:07 a.m.



Nikole Guzman, Recorder

Key requirements: Oregon OSHA's permanent rules for heat illness prevention

On May 9, 2022, Oregon adopted two permanent rules – 437-002-0156 and 437-004-1131 – following direction from Oregon Gov. Kate Brown to protect workers from heat-related illnesses.

The rules' key requirements are identical and apply to any workplace where extreme heat caused by weather can expose workers to heat-related illnesses – medical conditions resulting from the body's inability to cope with a particular heat load; 437-004-1131 applies to agricultural workplaces and 437-002-0156 applies to all other workplaces. The rules do not apply to buildings and structures that have mechanical ventilation that keep the indoor heat index less than 80 degrees Fahrenheit.

The key requirements are based on a set of numbers called the heat index – sometimes called the apparent temperature – published by the National Oceanic and Atmospheric Administration's National Weather Service. There is a direct relationship between air temperature and relative humidity; the heat index indicates what the temperature feels like to the human body when relative humidity and the air temperature are combined.

Oregon OSHA's rules for preventing heat illnesses apply to workplaces whenever an employee is working and the heat index equals or exceeds 80 degrees Fahrenheit. More requirements apply (see High heat



practices, below) when the heat index exceeds 90 degrees Fahrenheit.

Exemptions – There are both full and partial exemptions in the rules

Full exemptions: Incidental heat exposures, exposures to heat generated from the work process, emergency operations, and buildings and structures that have a mechanical ventilation system that keeps the heat index below 80 degrees Fahrenheit.

Partial exemptions: Employers whose employees perform either “rest” or “light” workloads, associated support activities for wildland firefighters, and employees who work from home.

KEY REQUIREMENTS

Access to shade

Establish one or more shade areas when the heat index equals or exceeds 80 degrees Fahrenheit. Shade may be provided by natural or artificial means that do not expose employees to unsafe or unhealthy conditions and that do not discourage access or use.

Those performing “rest” or light” work, as defined by the rules, are exempt from the provisions for shade when the heat index is less than 90 degrees Fahrenheit. Shade must:

- Be open to the air or have mechanical ventilation for cooling.
- Be located as close as practical to the areas where employees are working.
- Accommodate at least the number of employees on recovery, rest, or meal periods so they have room to sit.

When an employee’s access to shade is not possible in a particular situation – during high winds or when an

employee is walking through range land, for example – the employer must identify and implement cooling measures that provide equivalent protection to shade.

Drinking water

Other rules require water to be provided at all times, but the specific requirements for these rules are described below.

- Enough drinking water must be available so that each employee can consume 32 ounces per hour.
- Drinking water must be cool (66 to 77 degrees Fahrenheit) or cold (35 to 65 degrees Fahrenheit).
- Drinking water packaged as a consumer product and electrolyte-replenishing drinks that do not contain caffeine – sports drinks, for example – are acceptable substitutes, but should not completely replace the required water.

Employers are not required to supply the entire quantity of drinking water for employees at the beginning of a shift; employers may begin the shift with smaller quantities of water if they have a procedure that ensures any water consumed during the shift will be replaced.

Those performing “rest” or light” work, as defined by the rules, are exempt from the specific quantities of water when the heat index is less than 90 degrees Fahrenheit - but still required in other Oregon OSHA provisions.

Supervisor and employee annual training

Employers must ensure that all employees – including new, supervisory, and nonsupervisory employees – are trained **annually** in the following topics, in a language they can readily understand, before they begin work at sites where the heat index will be 80 degrees Fahrenheit or higher:

- The environmental and personal risk factors for heat illness, including the extra burden of heat caused by exertion, clothing, and personal protective equipment.
- The procedures for complying with the requirements of this standard, including the employer's responsibility to provide water, daily heat index information, shade, cool-down rests, how to report symptoms of heat-related illness, and access to first aid, as well as the employees' right to exercise their rights under this standard without fear of retaliation.
- How to adapt to working in a hot environment.



- The importance of employees immediately reporting symptoms or signs of heat illness – in co-workers or themselves.
- The effects of nonjob factors – such as medications, alcohol, and obesity – on tolerance to heat stress.
- The main types of heat-related illnesses – heat cramps, heat exhaustion, heat syncope, and heat stroke – and their signs and symptoms.
- The importance of frequent consumption of small quantities of water, up to 32 ounces per hour.

Those performing “rest” or light” work, as defined by the rules, are exempt from the training requirements when the heat index is less than 90 degrees Fahrenheit.

High heat practices

When the heat index exceeds 90 degrees Fahrenheit, employers must implement the following additional high heat practices:

- Ensure that effective communication by voice, observation, or electronic means is maintained so that employees working at the site can contact a supervisor when necessary. Cellphones and text messaging may be used for this purpose only if reception in the area is reliable.
- Ensure that employees are monitored for signs of heat illness, and whether medical attention is necessary, using one or more of the following:
 - Regular communication with employees working alone – by radio, cellphone, or other alternative means.
 - A mandatory buddy system.
 - Other equally effective means of observation or communication
- Designate and equip one or more employees at each site who can call for emergency medical

services and allow other employees to call for emergency services when designated employees are not immediately available.

- Ensure that each employee takes heat illness prevention rest breaks, based upon one of the three options in the rules, regardless of the length of the shift.
 - The rest break can take place with any other meal or rest period required by policy, rule, or law if the timing of the break coincides with the required meal or rest period.
 - The preventive cool-down rest break is a work assignment.

Emergency medical plan

When the ambient temperature at a site exceeds the heat index of 80 degrees Fahrenheit, employers must implement an emergency medical plan that complies with 437-002-0161, Medical and first aid (agricultural

employers must implement, per [437-004-1305\(4\)](#)), and includes procedures for:

- Responding to employees' signs and symptoms of possible heat illness, including the use of first aid and how emergency medical services will be provided. If a supervisor observes or an employee reports signs or symptoms of heat illness, the supervisor must take immediate action appropriate to the severity of the illness.
 - If a supervisor observes signs or an employee reports symptoms of heat illness, the employee must be relieved from duty and provided with a means to reduce body temperature.
 - If the signs or symptoms indicate severe heat illness – such as decreased consciousness, staggering, vomiting, disorientation, irrational behavior, or convulsions – immediately implement the emergency response procedures.



- An employee exhibiting signs or symptoms of heat illness must be monitored and must not be left alone or sent home without being offered on-site first aid or provided with emergency medical services.
- Contacting emergency medical services and, if instructed to do so by medical professionals, transporting employees to a place where they can be reached by an emergency medical provider.
- Ensuring that clear and precise directions to the site are provided to emergency responders so they can quickly find the affected employee.

Acclimatization

Employers must develop effective acclimatization practices that allow employees to gradually adapt to working at sites where the ambient temperature heat exceeds the heat index of 80 degrees Fahrenheit. Employers may either develop their own acclimatization plan or follow guidance from the National Institute for Occupational Safety and Health (NIOSH).

More heat-related illness resources can be found at osha.oregon.gov/pages/topics/heat-stress.aspx



[Visit Oregon OSHA](https://osha.oregon.gov)

WORKERS

Your employer cannot retaliate against you for reporting any workplace health or safety concern or violation, for more information on your rights visit Oregon OSHA.



 FACT SHEET

Key requirements: Oregon OSHA's permanent rules for protection from wildfire smoke — revised May 2024



Oregon OSHA's adopted permanent rules – OAR 437-002-1081 and OAR 437-004-9791, Protection from Wildfire Smoke – apply to employers whose employees are or will be exposed to hazardous levels of wildfire smoke. In May 2024, the [U.S. Environmental Protection Agency \(EPA\)](#) updated how it calculates and reports Air Quality Index (AQI) values. The requirements based on PM_{2.5} concentrations in the Oregon OSHA wildfire smoke rules are not changing. The updated AQI system does not increase worker exposure to wildfire smoke or the threshold levels of Oregon OSHA's rules, which are measured in micrograms per cubic meter ($\mu\text{g}/\text{m}^3$) of particulate matter (PM) 2.5. The conversion between the previous AQI, the new AQI, and where the rule is triggered is provided on the next page of this fact sheet.

With large-scale wildfire events across the western United States becoming more frequent, wildfire smoke is an increasing danger to Oregon workers. The harmful chemicals and tiny particles suspended in wildfire smoke can make anyone sick. The tiny particles of most concern and addressed in these standards is the particulate matter with a diameter in micrometers of 2.5 or less, commonly referred to as PM_{2.5}.

Mild symptoms of wildfire smoke exposure include coughing, runny nose, and eye irritation and inflammation, while more serious health effects include trouble breathing, asthma attacks, reduced lung function, chest pain, and heart attacks.

Although OAR 437-004-9791 applies only to agricultural employers, its key requirements and exemptions are identical to OAR 437-002-1081, which applies for all other employers such as general industry, construction, and forest activities.

These standards **do not** apply to the following:

- Enclosed buildings, structures, and vehicles in which air is filtered by a mechanical ventilation system, and when exterior openings are kept closed except when it is necessary to briefly open doors to enter or exit
- Employers that have predetermined to suspend operations to prevent employee exposure to wildfire smoke levels for PM_{2.5} at or above $35.5 \mu\text{g}/\text{m}^3$ (AQI 101)
- Employees working at home

The following activities and operations are partially exempt from the standards:

- Wildland firefighting and associated support activities such as fire camp services and fire management
- Evacuation, rescue, utilities, communications, and medical operations directly involved in or aiding emergency operations or firefighting operations
- Work activities involving only intermittent employee exposure of less than 15 minutes in an hour to wildfire smoke levels for PM_{2.5} at or above $35.5 \mu\text{g}/\text{m}^3$ (AQI 101), for a total exposure of less than one hour in a single 24-hour period

Previous AQI values	New AQI values (effective May 2024)	Wildfire Smoke standards' key requirements for exposure level using new AQI values
101 - 250	101 - 276	1. Assess and monitor air quality at each work location where employees are exposed 2. Provide and document employee training 3. Implement two-way communication system 4. Implement engineering and administrative controls 5. Provide NIOSH-approved filtering facepiece respirators for voluntary use
251 - 500	277 - 848	Follow steps 1-4 above; and 6. Provide NIOSH-approved filtering facepiece respirators for mandatory use by implementing a Wildfire Smoke Respiratory Protection Program in accordance with Appendix A, in the Protection from Wildfire Smoke standards
501 and above	849 and above	Follow steps 1-4 above; and 7. Provide NIOSH-approved respirators for mandatory use by implementing a Respiratory Protection Program in accordance with 29 CFR 1910.134 or OAR 437-004-1041

Employers with employees who are exposed to wildfire smoke levels for PM_{2.5} at or above 35.5 µg/m³ (AQI 101) only when engaged in a partially exempt activity or operation listed above, are required to provide information and training only on elements in subsection (4)(a) through (4)(g) in the standards, in addition to providing National Institute for Occupational Safety and Health (NIOSH)-approved filtering facepiece respirators for voluntary use.

DESCRIPTION OF EACH KEY REQUIREMENT (1-7):

1. Assess and monitor air quality at each work location where employees are exposed

The level of wildfire smoke at work locations that triggers these standards is when the PM_{2.5} ambient



air concentration equals or exceeds $35.5 \mu\text{g}/\text{m}^3$, which is equivalent to an AQI for PM_{2.5} of 101 or greater. The AQI was developed by the EPA as an indicator of overall air quality for the general population, and is largely and easily accessible by the public. When work locations are affected by wildfire smoke, employers and employees with internet access can determine air quality conditions by checking the current average AQI value for PM_{2.5} for their geographical area by using the following websites or apps:

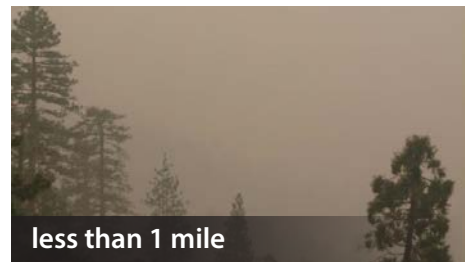
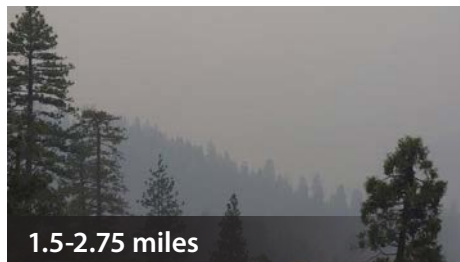
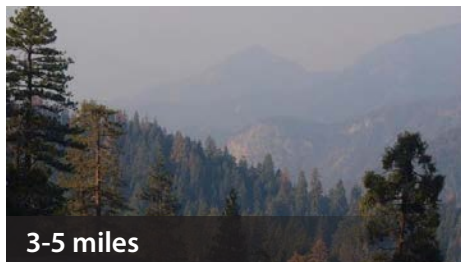
- Oregon DEQ website: <https://aqi.oregon.gov/>
- OregonAir (DEQ) app: Search for "OregonAir" in your mobile app store (free)
- U.S. EPA AirNow Fire and Smoke Map website: <https://fire.airnow.gov/>
- U.S. EPA AirNow app: Search for "EPA AirNow" in your app store (free)

Additionally, employers can choose to directly measure workplace ambient air concentration for PM_{2.5} by purchasing and using a calibrated measuring device for PM_{2.5} and following the manufacturer's instructions. This method will provide the most accurate level of PM_{2.5}, especially for indoor workplaces where the air is not filtered by mechanical ventilation.

For employers that have determined and can demonstrate that none of the methods listed above are available for their work location, a method known as the [5-3-1 Visibility Index](#) can be used to estimate the current air concentration for PM_{2.5}, and equivalent AQI value, as shown below:

New AQI values (effective May 2024)	Visibility Index Values (How far you can see)
0 – 50	over 15 miles
51 – 100	5 – 15 miles
101 – 150	3 – 5 miles
151 – 200	1 – 3 miles
201 – 277 – 300	1 mile
301 – 849 and higher	less than 1 mile
Rule exposure thresholds and visibility distances highlighted in red.	

VISIBILITY DISTANCES:



Photos above are from the United States Forest Service's InciWeb – Incident Information System, at inciweb.nwcg.gov

2. Provide and document employee training

Training must be provided to employees in a manner and a language they readily understand and must include:

- A. The symptoms of wildfire smoke exposure, including:
 - Eyes: burning sensations, redness, and tearing of the eyes caused by irritation and inflammation that can temporarily impair vision
 - Respiratory system: runny nose, sore throat, cough, difficulty breathing, sinus irritation, wheezing, and shortness of breath
 - Fatigue, headache, irregular heartbeat, and chest pain
- B. The potential acute and chronic health effects from wildfire smoke exposure, including increased health risks to sensitive groups, and how chronic exposures can increase the risk of cardiovascular disease and can exacerbate asthma.
- C. Each employee's right to report health issues related to wildfire smoke exposure and obtain medical treatment for such workplace exposures without fear of retaliation.
- D. How employees can obtain the current average and forecasted ambient air concentration for PM_{2.5} and equivalent AQI value for their work location.
- E. The importance, limitations, and benefits of using a filtering facepiece respirator, which is provided by the employer at no cost to the employee to reduce exposure to wildfire smoke, and how to use and maintain their filtering facepiece respirator.
- F. The employer's methods to protect employees from wildfire smoke, including how filtering facepiece respirators are required to be made readily accessible to employees for voluntary use, and how employees can obtain such respirators before exposure and replace them when needed.
- G. Review of any job tasks performed by employees in which the use of a filtering facepiece respirator would expose the wearer to a hazard associated with a substantially more serious injury or illness than the potential acute health effects of wildfire smoke exposure.





- H. The procedures supervisors must follow when an employee reports or exhibits health symptoms that necessitate immediate medical attention, including, but not limited to, asthma attacks, difficulty breathing, and chest pain.
- I. How to operate and interpret exposure results based on any PM_{2.5} monitoring device used by the employer in compliance with the standard.
- J. An explanation of the employer's two-way communication system for wildfire smoke exposure control information.

Training elements (a) through (e) above are included in [Oregon OSHA's wildfire smoke training course](#) that is available to all employers and employees in both English and Spanish.

Employers that are not partially exempt from the standard must verify supervisor and employee training by preparing a written or electronic record that includes at least the name or identification number of each employee trained, the dates of the trainings, and the name of the people who conducted the training. The most recent annual training record for each employee must be maintained for one year.

3. Implement two-way communication system

A two-way communication system must be used to communicate wildfire smoke information between supervisors and employees. Such information includes any changes in the air quality at the work location that would necessitate an increase or decrease in the level of exposure controls. The two-way communication must also allow employees to report issues concerning their access to exposure controls and any health symptoms from wildfire smoke exposure that could necessitate medical attention. The means to communicate information may include, but are not limited to, in-person, cell phone, and two-way radio.

4. Implement engineering and administrative controls to employees exposed to PM_{2.5} levels at or above 35.5 µg/m³ (AQI 101)

Engineering and administrative controls that are functionally possible and would not prevent the completion of work must be used to reduce employee exposure to wildfire smoke. Such controls include relocating outdoor workers to enclosed buildings or to outdoor locations where the air quality is better, and making work schedule changes to reduce employee exposures. The use of engineering and administrative controls may be used in combination with NIOSH-approved filtering facepiece respirators.

5. Provide NIOSH-approved filtering facepiece respirators for voluntary use to employees exposed to PM_{2.5} levels at or above 35.5 µg/m³ (AQI 101)

Employer-provided respirators for voluntary protection from wildfire smoke must either be distributed directly to employees or be made readily accessible to any exposed employee at each work location. Respirator supplies must be in a location that does not restrict or hinder employee access nor discourage the replacement of a respirator when needed. NIOSH-approved filtering facepiece respirators do not include any "KN" designations, such as KN95s. Such "KN" respirators are not appropriate to reduce employee exposure to wildfire smoke. NIOSH-approved filtering facepiece respirators appropriate for wildfire smoke protection include: N95, N99, N100, R95, R99, R100, P95, P99, and P100.

6. Provide NIOSH-approved filtering facepiece respirators for mandatory use to employees exposed to PM_{2.5} levels at or above 200.9 µg/m³ (AQI 277) by implementing a Wildfire Smoke Respiratory Protection Program in accordance with Appendix A of the Protection from Wildfire Smoke standards

Employer-provided NIOSH-approved filtering facepiece respirators used strictly for mandatory protection from wildfire smoke must either follow the Wildfire Smoke Respiratory Protection Program as described in Appendix A, which do not require medical evaluations and fit testing, or be in accordance with the applicable Respiratory Protection standard, 29 CFR 1910.134 or OAR 437-004-1041.



7. Provide NIOSH-approved respirators for mandatory use to employees exposed to PM_{2.5} levels at or above 500.4 µg/m³ (AQI 849) by implementing a Respiratory Protection Program in accordance with 29 CFR 1910.134 or OAR 437-004-1041

Due to the high hazard level of air quality conditions at or above 500.4 µg/m³ (AQI 849), employers must ensure that employees wear appropriate NIOSH-approved respirators in accordance with the applicable Respiratory Protection Standard, [29 CFR 1910.134](#) or [OAR 437-004-1041](#).



[Visit Oregon OSHA](#)

WORKERS

Your employer cannot retaliate against you for reporting any workplace health or safety concern or violation. For more information on your rights, visit Oregon OSHA.

3:58



WATCH DUTY



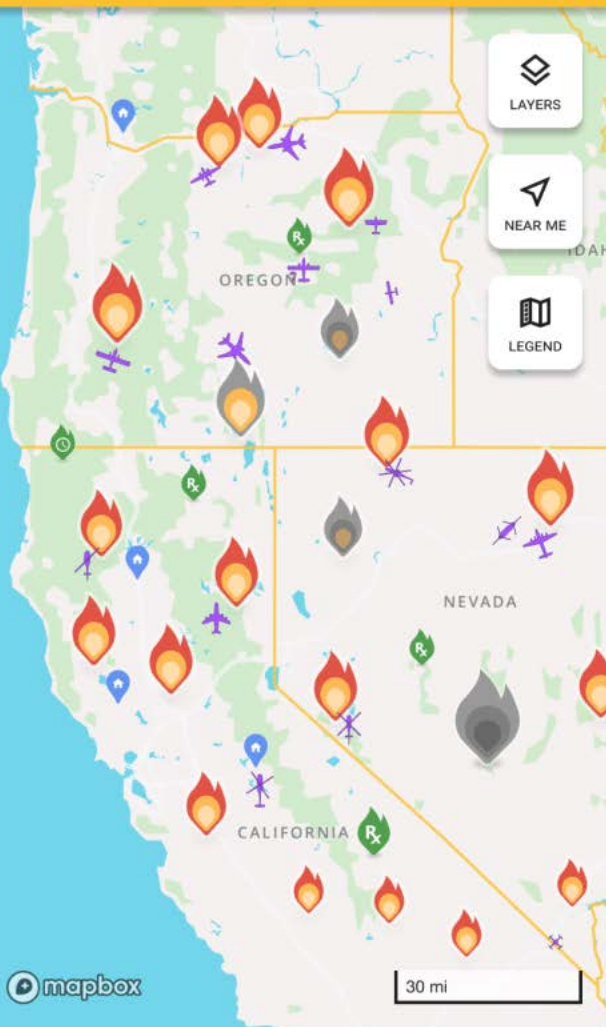
LAYERS



NEAR ME



LEGEND



mapbox

30 mi

Search

3:58



WATCH DUTY



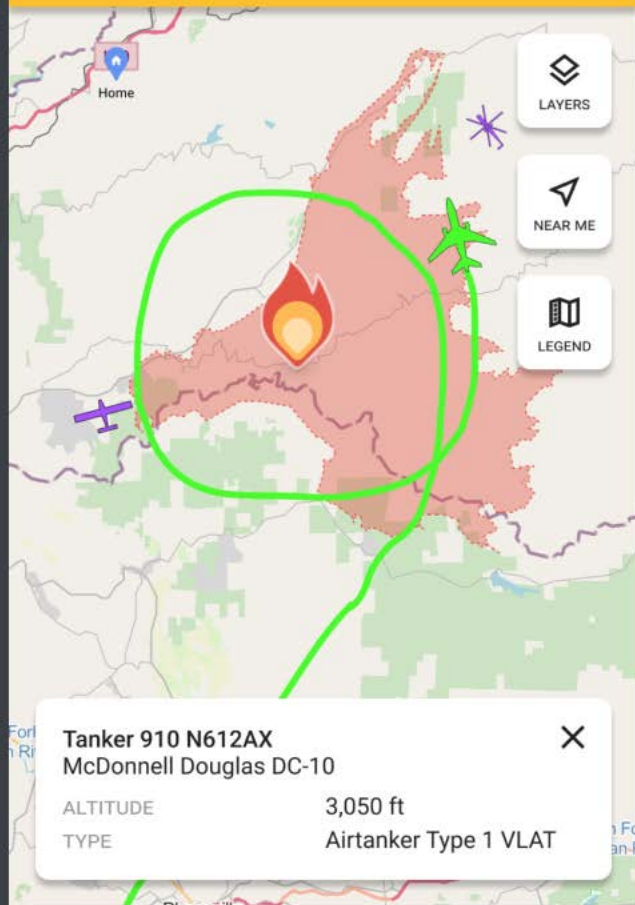
LAYERS



NEAR ME



LEGEND



Tanker 910 N612AX
McDonnell Douglas DC-10



ALTITUDE 3,050 ft
TYPE Airtanker Type 1 VLAT

Mosquito Fire

North side of Oxbow Reservoir, Foresthill
Placer County, CA

ACRES
76,788

CONTAINMENT
10%

STATUS
Active